

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
SHANAE WALBEY,

Plaintiffs,

SUMMONS

-against-

Plaintiff resides at:
1744 Watson Avenue, Apt. 6B
Bronx, New York 10472

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND POLICE OFFICERS JOHN AND
JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT,
Defendants,

-----X

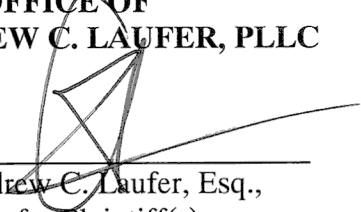
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
September 29, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff(s)
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICERS JOHN AND JANE
DOE 1-10 OF PSA 8
2794 Randall Avenue,
Bronx, New York 10465

POLICE OFFICERS JOHN AND JANE
DOE 1-10 OF THE 75TH PRECINCT
1000 Sutter Avenue,
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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SHANAE WALBEY,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND POLICE OFFICERS JOHN AND
JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT,
Defendants,

-----X

Plaintiffs, by and through her attorneys, Law Office of Andrew C. Laufer, PLLC
complaining of the Defendants herein, upon information and belief, respectfully show to this
Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiffs were residents of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.
5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiffs.

6. That a hearing was held by the CITY OF NEW YORK pursuant to Municipal Law 50-h on or about September 1, 2020.

7. That at all time herein mentioned, POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT were acting in their individual and official capacity as an employee of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about March 21, 2020, at approximately 6:30 p.m., Plaintiff SHANAE WALBEY was lawfully at the premises known as 1744 Watson Avenue, Bronx, New York 10472.

11. At or about said place and time, while the plaintiff was coming from her apartment, she was stopped, handcuffed and taken into custody by the defendants in front of her young child.

12. She was transported to PSA and held there for several hours.

13. She was then transported to the 75th precinct and held for several more hours after which she was taken to Central Booking.

14. After being held for several more hours, she was released and told that the arresting officers made a mistake and she was the "wrong person."

15. The plaintiff was held for over 25 hours and was never charged with any crime.

16. The individual Defendants, POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of her rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of her person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against her by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

17. Plaintiffs repeat and reallege each and every allegation contained above as though set forth at length herein.

18. That on or about March 21, 2020, at approximately 6:30 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiffs without any right or justifiable grounds therefore.

19. That on or about March 21, 2020, at approximately 6:30 p.m., POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, jointly and severally in their capacity as a police officers, wrongfully entered, stopped, handcuffed and seized the

Plaintiffs about their person, causing them physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiffs, nor did Plaintiffs consent to this illegal touching nor was or privileged by law.

20. That on or about March 21, 2020, Defendants, jointly and severally, wrongfully and unlawfully detained Plaintiff, restrained her and her liberty.

21. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officers, without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

22. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

23. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment and New York State law.

24. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America, the Fourth and Fourteenth Amendments and New York State law.

25. As a result of the aforementioned actions, Defendants deprived Plaintiff of her right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

26. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

27. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

28. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1983, 1988 and New York State law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

29. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

30. All of the acts and omissions by the individual Defendants, described herein were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

31. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

32. Defendants arrested, imprisoned, and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and imprisonment and assault would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

33. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York

and/or City of New York.

34. On or about March 21, 2020, Defendants did stop, seize, search, assault and commit a battery and grab the person of the Plaintiff. They did physically seize the persons of the Plaintiff during the arrest process in an unlawful and excessive manner.

35. The Plaintiff were falsely arrested, unlawfully imprisoned and assaulted without the Defendants' possessing probable cause to do so.

36. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to their person.
- b. Freedom from battery to their person.
- c. Freedom from false arrest.
- d. Freedom from the use of excessive force during the arrest process.
- e. Freedom from unlawful imprisonment.

37. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights.

38. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

39. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature. She was forced to endure pain and suffering to her detriment.

THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF
EXCESSIVE FORCE UPON PLAINTIFFS

40. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

41. That on or about March 21, 2020, at approximately 6:30 p.m., Defendant POLICE OFFICERS JOHN AND JANE DOE 1-10 OF PSA 8 AND THE 75th PRECINCT, jointly and severally in their capacity as police officers, wrongfully stopped, handcuffed and seized the Plaintiff about her person, causing her physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

42. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

43. As a result of the aforementioned actions, Defendants deprived Plaintiff of her right against the use of excessive force against her person secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

44. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

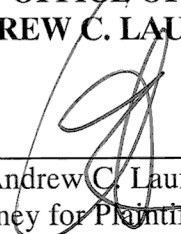
45. That by reason of the false arrest, imprisonment, assault and battery of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and were caused to suffer much pain in both mind and body due to this excessive force, and to sustain economic loss, and was otherwise damaged.

46. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1983, 1988, and New York State law.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
September 29, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHANAE WALBEY,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
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Defendants,

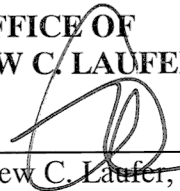
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the Plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the Plaintiff is that the Plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
September 29, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHANAE WALBEY,

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JANE DOE 1-10 OF PSA 8 AND THE 75TH PRECINCT,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer